

elementary that points raised for the first time in a reply brief are not considered by the court.” (*Magic Kitchen LLC v. Good Things Internat., Ltd.* (2007) 153 Cal.App.4th 1144, 1161 quoting *Levin v. Ligon* (2006) 140 Cal.App.4th 1456, 1486.) If Defendants believe the judgment is void and should be set aside under subdivision (d), it should file a motion that properly raises such arguments in the first instance.

Conclusion

Based on the above, Defendant’s Motion is **DENIED** without prejudice to filing a new motion to set aside based on Code of Civil Procedure 473(d).

12. 9:00 AM CASE NUMBER: N25-0881
CASE NAME: DAVID WEE VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: TO: 1ST AMENDED PETITION FOR WRIT OF MANDATE
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

Respondent City of Richmond (the “City”) filed a Demurrer on December 5, 2025 the “Demurrer”) to the First Amended Complaint filed by Plaintiff on November 12, 2025 (the “FAC”). The Demurrer was set for hearing on April 20, 2026. Notice was duly given.

Background

The City’s Demurrer contends, among other things, that all of the causes of action alleged in the FAC fail to state facts sufficient to constitute causes of action because they are barred by the applicable statute of limitations. The Court sustained the City’s prior demurrer to the initial complaint on similar grounds and granted leave to amend. See Order entered October 29, 2025 (the “Prior Ruling”).

Analysis

The Demurrer is unopposed. The City’s accompanying request for judicial notice is likewise unopposed and is GRANTED, subject to the limitations on judicial notice under applicable law as addressed more fully in the Court’s Prior Ruling.

Disposition

The Court finds and orders as follows:

1. The Demurrer is SUSTAINED.
2. Leave to amend is DENIED.
3. Moving party to submit proposed form of order and judgment of dismissal.

13. 9:00 AM CASE NUMBER: N25-1244
CASE NAME: MALINA CURIALE VS. RUBY LIU
***HEARING ON MOTION IN RE: FOR RECONSIDERATION**
FILED BY: LIU, RUBY SHE